



CHAPTER viii.

An Act to confer upon the Sidmouth Urban District Council powers in relation to the supply of gas and electricity and to enable the Council to acquire the undertaking of the Sidmouth Gas and Electricity Company. A.D. 1912.
[25th June 1912.]

WHEREAS the district of Sidmouth is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the urban district council of Sidmouth (in this Act referred to as "the Council"):

And whereas the Sidmouth Gas and Electricity Company (in this Act referred to as "the Company") were incorporated by the Sidmouth Gas and Electricity Act 1911 (in this Act referred to as "the Act of 1911") and powers were conferred upon them for the supply of gas within the parish and urban district of Sidmouth and the parishes of Salcombe Regis and Sidbury in the county of Devon and of electricity within the said parish and urban district of Sidmouth:

And whereas by section 92 of the Act of 1911 power is given to the Council to purchase the undertaking of the Company upon the terms and conditions therein set forth and the said section contains other provisions to which effect is given by this Act:

And whereas it is expedient that the gas and electricity supply of the district should be under the control of the Council and that the undertaking of the Company should be transferred to and vested in the Council in manner provided by this Act and that further provision should be made in regard to the supply of gas and electricity within the limits of this Act:

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And whereas it is expedient that the Council should be authorised to borrow money for the purchase of the undertaking of the Company and for the other purposes in this Act specified :

And whereas an absolute majority of the whole number of the Council at a meeting held on the thirteenth day of June one thousand nine hundred and eleven after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *Sidmouth Observer* a local newspaper circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate :

And whereas such resolution was published twice in the *Sidmouth Observer* a newspaper circulating in the district as aforesaid and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the twenty-fourth day of January one thousand nine hundred and twelve being not less than fourteen days after the deposit of the Bill for this Act in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the *Sidmouth Urban District Council Act 1912*.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :--

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Incorporation of Acts.

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) :

The Gasworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit and with respect to the yearly receipt and expenditure of the undertakers) Provided that section 13 thereof shall be read as if the words "or any premises" were inserted after the words "private building" :

The Gasworks Clauses Act, 1871 (except sections 7 8 and 35 thereof) :

The provisions of the schedule to the Electric Lighting (Clauses) Act 1899 (except section 23 thereof) and for the purpose of the application of those provisions this Act shall be deemed to be "the special Order" and the date of transfer shall be deemed to be "the commencement of the special Order."

3. In construing this Act the following words and expressions have the meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say) :—

Interpretation.

"The district" means the urban district of Sidmouth ;

"The Council" means the urban district council of the district ;

"The district fund" and "the general district rate" mean respectively the district fund and general district rate of the district ;

"The clerk" means the clerk to the Council ;

"The Company" means the Sidmouth Gas and Electricity Company ;

"The undertaking of the Company" includes all the works engines mains pipes machinery lands buildings plant

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fixed and movable and all other the real and personal property assets and effects of whatever nature and all the rights powers and privileges vested in or belonging to or had or enjoyed by the Company at the date of the transfer of the undertaking to the Council under the provisions of this Act save and except the books and papers relating exclusively to the shareholders and constitution of the Company ;

“The date of transfer” means the date of the transfer of the undertaking of the Company to the Council under the provisions of this Act ;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ;

“Revenues of the Council” includes the revenues of the Council from time to time arising from any land undertakings or other property for the time being of the Council and the rates or contributions leviable by or on the order or precept of the Council ;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council ;

"The Act of 1911" means the Sidmouth Gas and Electricity Act 1911; A.D. 1912.

Terms to which meanings are assigned by the Acts wholly or partially incorporated with this Act have the same respective meanings unless varied by this Act or unless there is something in the subject or context repugnant to such construction and in the Acts so incorporated with this Act the expressions "the undertakers" and "the promoters of the undertaking" shall for the purposes of this Act mean the Council.

4. The limits of this Act for the supply of gas (in this Act referred to as "the gas limits") and the area of supply of the Council for electricity purposes (in this Act referred to as "the electricity area") shall be the district. Limits of Act.

5. If at any time after the passing of this Act any local authority whose district is beyond the district of the Council but as to the whole or any part thereof within their limits for the supply of gas shall give not less than six months' notice in writing to the Council of their desire to purchase such portion of the gasworks and plant of the Council as is contained within the district of any such local authority and shall obtain the consent of the Local Government Board to such purchase and shall apply to Parliament or the Local Government Board for power to purchase such portion of the undertaking and plant of the Council (except the mains and pipes or other apparatus which shall be necessary for supplying with gas any other part of the limits of the Council for the supply of gas) and to supply gas within such district then it shall not be lawful for the Council to oppose such application (except as to the details thereof) and if such powers of purchase and supply be granted the Council shall sell and such local authority shall purchase the portion of the gasworks and plant of the Council (except as aforesaid) within the district of such local authority at such price being a sum in gross and upon such terms and conditions as shall be fixed in default of agreement by arbitration under the provisions of the Lands Clauses Acts Any such purchase shall be deemed to be a purpose of the Public Health Act 1875 except so far as may be otherwise provided for by Parliament The Council shall apply the proceeds of any sale under this section in the same manner as they are required to apply money Sale of plant outside district.

A.D. 1912. received from sales of land under this Act. Provided that after the completion of such purchase all obligations on the part of the Council to supply gas within the district of the purchasing authority shall cease and determine.

PART II.

PURCHASE OF UNDERTAKING.

Council to
purchase
undertaking
of Company.

6.—(1) The Company shall sell to the Council and the Council shall purchase the undertaking of the Company for such price or consideration being a sum in gross and, on and subject to such terms and conditions as may be agreed upon between the Company and the Council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression "the promoters of the undertaking" shall mean the Council and the expression "lands" shall mean the undertaking of the Company.

(2) Within six months after the passing of this Act the Council shall serve upon the Company notice of their intention to purchase the undertaking of the Company.

(3) In addition to the purchase price or consideration the Council shall pay to the Company the taxed costs charges and expenses of obtaining the Act of 1911 and of procuring any amendment to the Bill for this Act and also of and incident to the transfer of the undertaking and the winding-up of the Company.

(4) The Company shall be entitled to retain or shall be paid by the Council in addition to the price or consideration for the transfer of the undertaking such sum as shall be necessary to enable the Company to pay dividends at the authorised rates from the date of the last payment of such dividends to the date of transfer but subject to payment of the said dividends the Council shall upon the transfer be entitled to the benefit of all revenues receipts and profits from the undertaking of the Company down to the date of transfer.

(5) The Council shall pay the purchase money to the Company on such day as may be agreed between the Council and the Company or failing agreement on the twenty-fourth

day of March the twenty-third day of June the twenty-eighth day of September or the twenty-fourth day of December which shall first happen after the expiration of three months from the determination by agreement in writing or by the award of the arbitrators or umpire of the amount of the purchase money and upon such payment the undertaking of the Company shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Council free from all mortgage or debenture debts and such transfer and vesting are in this Act referred to as "the transfer":

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Provided that if the Council shall not pay the purchase money on such date as aforesaid they shall pay to the Company interest thereon at the rate of four pounds per centum per annum until the date of actual payment.

(6) The production of a King's printer's copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by two directors of the Company or by the cashier of the Bank of England shall (unless it be proved that the purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer.

7. The Council shall pay compensation to Thomas Douglas as director or managing director of the Company and to any other officers and servants in the regular employment of the Company who shall not be retained by the Council in the same or similar office or employment and at the salary and on the terms and conditions in and on which they respectively were employed by the Company on the first day of January one thousand nine hundred and eleven in respect of any loss of office or diminution of salary or income by reason of the transfer of the undertaking of the Company to the Council the amount of such compensation in default of agreement to be determined by arbitration in accordance with the provisions of the Arbitration Act 1889 and the said Thomas Douglas and any other officer or servant who has been not less than ten years in the employment of the Company shall not lose his right to compensation as aforesaid by reason of his refusal to accept employment under the Council nor shall any such refusal be taken into account as a ground for reducing the amount of compensation to be paid.

Compensation to officers.

8. All obligations and liabilities of the Company (other than mortgage or debenture debts and the interest thereon

Liabilities to be defrayed by Council.

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A.D. 1912. which shall be paid by the Company) which exist at the date of transfer and then remain undischarged unpaid or unsatisfied shall be discharged paid or satisfied by the Council.

Receipt for
purchase
money.

9. The receipt in writing of two directors of the Company for the purchase price of the undertaking of the Company or for any other sum of money to be paid to the Company by the Council in pursuance of this Act shall effectually discharge the Council from the sum which in such receipt shall be acknowledged to have been received and from being answerable or accountable for the loss misapplication or non-application thereof. Provided that if from any cause the Council are unable to obtain such receipt they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Council by the cashier of the said bank for the money which shall have the same effect as the receipt of the two directors of the Company.

Actions
pending not
to abate.

10. If at the date of transfer any action or proceeding or any cause of action or proceeding is pending or existing by or against or in favour of the Company in respect of the undertaking of the Company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by or against or in favour of the Council as and when it might have been continued prosecuted and enforced by or against or in favour of the Company if this Act had not been passed.

Contracts to
be binding
upon Coun-
cil.

11. Subject to the provisions of this Act all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made and subsisting in respect of the undertaking of the Company at the date of transfer and then in force shall be as binding and of as full force and effect in every respect against or in favour of the Council and may be enforced as fully and effectually as if instead of the Company the Council had been a party thereto.

Maintenance
of under-
taking by
Company till
transfer.

12. Until the transfer the undertaking of the Company shall be maintained and carried on by the Company as heretofore in the ordinary course of business with all due care but the Company shall not without the previous consent of the Council raise

any further capital or make or enter into any contract agreement or other obligation except such as shall be in the ordinary course of the maintenance of the works and the proper conduct of the undertaking. A.D. 1912.

13. All documents books and writings which if the transfer had not been made would have been receivable in evidence in respect of any matter for or against the Company shall after the transfer be admitted in evidence in respect of the same and the like matter for or against the Council. Books and documents to remain evidence.

14.—(1) From and after the transfer the Company shall subsist only for the purpose of receiving and recovering the sums payable to the Company as provided by this Act and paying the mortgage and debenture debts and distributing the net moneys of the Company and for winding up the affairs of the Company and carrying into effect the purposes of this Act so far as they relate to the Company and the directors of the Company who are in office at the date of transfer and the survivors or survivor of them shall continue in office without re-election and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section. Winding up of Company.

If the number of directors of the Company be reduced by death resignation or otherwise below three before the completion of such winding up the continuing directors shall from time to time choose a shareholder or shareholders of the Company to fill the vacancy or vacancies so caused.

(2) Forthwith after the transfer the directors of the Company shall proceed to wind up the affairs of the Company and shall pay and distribute their net moneys to and among the several persons who at the date of transfer were the registered holders of shares in the capital of the Company or their respective executors administrators and assigns according to their rights and interests in the Company and for the purpose of such distribution the several persons whose names shall appear in the books of the Company at the date of transfer to be the proprietors of shares therein shall unless the contrary be proved to the satisfaction of the directors be considered to be shareholders of the Company and the receipt in writing of such persons or their executors or administrators or of the committee or guardian of the estate of any such person who shall be an idiot

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(3) When the directors of the Company are for six months after the transfer unable after diligent inquiry to ascertain the person to whom any money ought to be paid or who can give an effectual receipt for the same they may pay the same into the High Court or if not exceeding five hundred pounds into the county court of Devon holden at Honiton under any Act for the time being in force for the relief of trustees and every such payment shall effectually discharge the Company and the directors thereof from all further liability with respect to the money so paid in.

(4) After the date of transfer and until the Company shall be finally wound up and dissolved the Company shall be entitled to retain the registers of shareholders and other books relating solely to the holders of shares in and to the constitution of the Company and shall have access at all reasonable times to the other books documents and accounts relating to the transferred undertaking for the purpose of making up the accounts of the Company to the date of transfer and for all other reasonable purposes in relation to the winding up of the Company.

(5) Upon the purposes specified in this section being fulfilled the Company shall ipso facto be dissolved.

PART III.

SUPPLY OF GAS AND ELECTRICITY.

Powers as to
maintenance
of gasworks.

15. Subject to the provisions of this Act the Council may from time to time after the transfer maintain alter improve enlarge extend and renew or discontinue the existing gasworks upon the lands described in the First Schedule to the Act of 1911 so far as the same are for the time being vested in the Council and they may also on the said lands erect lay down provide and maintain alter improve enlarge extend and renew or discontinue the existing and additional and other gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stopcocks machinery and other works and apparatus and conveniences and may do all such acts as

they may think proper for making and storing gas and for supplying gas for public and private purposes in bulk or otherwise for lighting heating or motive power within the gas limits and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar pitch asphaltum ammoniacal liquor sulphate of ammonia oil and all other products or residuum of any materials employed in or resulting from the manufacture of gas by them. A.D. 1912.

16. The price to be charged by the Council for gas supplied by them to persons who shall burn the same by meter shall not at any time exceed four shillings and sixpence per one thousand cubic feet. Limiting price of gas.

17.—(1) The quality of the gas supplied by the Council shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871. Testing quality.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Council or any five consumers approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Council shall before supplying or within three months after beginning to supply gas under this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

18. Subject to the provisions of this Act the Council may from time to time after the transfer generate and supply electricity for all public and private purposes within the electricity area. Power to supply electricity.

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Power to
purchase
lands by
agreement.

19. The Council may for the purposes of their gas undertaking or their electricity undertaking purchase take and hold by agreement in addition to the lands comprised in the undertaking to be acquired by them from the Company any lands and hereditaments not exceeding in the whole five acres which the Council may require for the purposes of either of those undertakings but the Council shall not create or permit a nuisance on any such lands and no lands shall be used by the Council for the purpose of manufacturing gas or residual products or generating electricity except the lands authorised to be so used by this or any other Act or by any Order confirmed by Act of Parliament.

Power to
retain sell
&c. lands.

20. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Electrical
fittings.

21.—(1) The Council may subject to the provisions of this section let for hire and fix repair and remove but shall not manufacture lamps meters electric lines fuses switches lamp-holders motors and other electrical fittings for lighting motive or other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may make such charges and subject to such terms and conditions as may be agreed upon.

(2) The Council may enter into contracts for the execution of any of the powers of this section including the wiring of private property and shall not themselves execute the wiring of private property except between the main of the Council and the consumer's meter nor shall they sell any such electrical fittings as aforesaid except through a contractor.

(3) Any electrical fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of law or proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Council as the actual owners thereof. A.D. 1912.

(4) Provided as follows:--

(A) The Council shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connexion therewith (including interest upon moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed):

(B) Every sum charged by the Council to a consumer in respect of the provision of such fittings or the fixing repairing or removal thereof shall be separately stated on every demand note delivered by the Council to the consumer:

(C) The total sums expended and received by the Council in connexion with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the electricity undertaking of the Council for that year.

22. Where any person has for the purposes of a stand-by only a supply of gas laid on by the Council to any premises for which he has at the same time a separate supply of electricity or gas other than that supplied by the Council the Council shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by them not exceeding twenty-five shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lower sum. Provided that in fixing the amount of such minimum charge the Council shall have regard to the probable maximum supply of gas which might at any time be required

Minimum charge for gas laid on to premises having a separate supply of gas or electricity.

A.D. 1912. for such premises. Provided also that in respect of any premises for which the whole supply of gas afforded by the Council is taken through a meter having a nominal capacity of less than ten lights the amount of the minimum charge shall not exceed five shillings for any one quarter of a year.

Application
to Council
of certain
sections of
Act of 1911.

23. As from the transfer the following sections of the Act of 1911 shall apply to the gas and electricity undertakings respectively of the Council and to the Council in respect thereof as if the Council were therein named instead of the Company (that is to say):—

Section 51 (Power to lay pipes &c. for ancillary purposes);

Section 53 (Charge for gas supplied by means of pre-payment meters);

Section 54 (Quality of gas);

Section 55 (Testing place);

Section 57 (Pressure of gas);

Section 58 (Saving as to penalties);

Section 59 (Company to pay interest on money deposited as security for gas meter &c.);

Section 60 (Power to supply gas fittings &c.);

Section 61 (Power to enter premises and remove fittings);

Section 62 (Power to require use of anti-fluctuators for gas engines);

Section 63 (Period of error in defective meters);

Section 65 (Gas consumers to give notice to Company before removing);

Section 66 (Power to refuse a supply to persons in debt for other premises);

Section 67 (Company may enter into contracts);

Section 68 (Power to hold licences under letters patent);

Section 69 (For protection of Sidmouth and London and South Western Railway Companies);

Section 72 (Power to appropriate lands and erect generating stations);

Section 74 (Power to break up streets not repairable by local authority);

Section 75 (Mains &c. to be laid down) provided that the A.D. 1912.
period within which distributing mains are
to be laid down shall be three years from
the passing of this Act instead of three
years from the passing of the Act of 1911;

Section 76 (Maximum prices);

Section 78 (For further protection of London and South
Western Railway Company);

Section 81 (Dwelling-houses for persons in Company's
employ);

Section 83 (Power to lay pipes in streets or roads not
dedicated to public use);

Section 84 (Notice to discontinue supply of gas or elec-
tricity);

Section 86 (Several sums in one summons);

Section 87 (Penalties not cumulative);

Section 88 (Recovery of penalties);

Section 89 (Recovery of demands);

and the First Second Third and Fourth Schedules.

24. As from the transfer the provisions of the Act of 1911 which are not made by this Act applicable to the gas and electricity undertakings respectively of the Council are hereby repealed except so far as may be necessary to give effect to the provisions of the section of this Act the marginal note of which is "Winding up of Company." Repeal of
parts of Act
of 1911.

PART IV.

FINANCIAL PROVISIONS.

25. The Council may in addition to any moneys they are now authorised to borrow or which they may be authorised to borrow under the provisions of the Public Health Acts or any public general Act borrow at interest for the purposes set forth in the first column of the following table on the respective securities set forth in the second column thereof any sums not exceeding the respective sums set forth in the third column thereof and all moneys borrowed under the powers of this Power to
borrow.

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Purpose.	Security.	Amount.	Period for Repayment.
For and in relation to the purchase of the undertaking of the Company and for defraying the costs charges and expenses incident to such purchase (other than the costs of this Act).	The revenue of the gas undertaking of the Council and the district fund and general district rate.	The sum requisite.	Thirty-five years from the date or dates of borrowing.
For working capital -	The same - - - -	2,000l. -	Ten years from the date or dates of borrowing.
For paying the costs charges and expenses of this Act as hereinafter provided and also the costs charges and expenses incurred by the Council in relation to their opposition to the Bill promoted by the Company in the session 1911.	The revenue of the gas and electricity undertakings of the Council and the district fund and general district rate.	The sum requisite.	Five years from the passing of this Act.

Provided that the provisions of this section shall not limit the powers conferred upon the Council by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and in calculating the amount which the Council may borrow under the Public Health Acts any sums which they may borrow under this Act shall not be reckoned.

Power to borrow additional moneys with consent of Local Government Board.

26. The Council independently of any other borrowing power may from time to time with the sanction of the Local Government Board borrow at interest such further moneys as may be required for any of the purposes of their gas undertaking or of their electricity undertaking on the security of the revenue of the undertaking in respect of which such money is borrowed and the district fund and general district rate and such moneys shall be paid off within such period not exceeding sixty years as the Local Government Board may prescribe.

Mode of raising money.

27. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the

issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. A.D. 1912.

28. The following sections of the Public Health Act 1875 (that is to say):—

Provisions
as to mort-
gages.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages);

shall (subject to the provisions of the section of this Act the marginal note of which is "Power to use one form of mortgage for all purposes") apply to and in relation to all mortgages made under the powers of this Act as if they were with necessary modifications re-enacted in this Act.

29. A person lending money to the Council shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or any part thereof.

Protection of
lenders from
inquiry.

30. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or partly by one of those methods and partly by another of them and the payment of the first instalment shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

Mode of pay-
ment off of
money bor-
rowed.

31.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual

Return to
Local
Government
Board.

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(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid or appropriated) the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Appoint-
ment of re-
ceiver.

32.—(1) Any mortgagee of the Council by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest due on their mortgages by the appointment of a receiver:

The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Power to re-
borrow.

33.—(1) The Council shall have power—

(a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying

moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys. A.D. 1912.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid--

- (A) by instalments or annual payments; or
- (B) by means of a sinking fund; or
- (C) out of moneys derived from the sale of land; or
- (D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

34.—(1) Where the Council have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section. Power to use one form of mortgage for all purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the common seal of the Council and may be made in the form contained in the schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

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A.D. 1912.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the principal sums and interest secured by mortgages granted under this section and all such sums and interest shall be paid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been payable respectively if this section had not been enacted.

(6) There shall be kept at the office of the Council a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other person having the custody of the same and refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(7) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the schedule to this Act or to the like effect.

(8) There shall be kept at the clerk's office a register of the transfer of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee.

(9) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit

of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby. A.D. 1912.

(10) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

35. All money borrowed under the provisions of this Act shall be appropriated to purposes for which it is authorised to be borrowed and shall be expended exclusively on works or objects on which capital may properly be expended. Application of money borrowed.

36. The Council shall apply all moneys received by them in respect of any sales exchanges or disposition of lands or premises or any interest therein or by way of fine or premium on any lease of lands or premises made under the authority of this Act and any other moneys received by the Council on capital account under this Act in or towards paying off any moneys borrowed and for the time being owing by the Council under this Act to which such capital moneys would be properly applicable or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council. Provided that such moneys received shall not be applicable to the payment of instalments appropriations or annual repayments except to such extent and upon such terms as may be approved by the Local Government Board. Application of moneys arising from sale of lands.

37. The Council shall not be bound to see to the execution of any trust whether express or implied or constructive to which any loan or security for loan given under the authority of this Act by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages shall from time to time be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered on their register and the Council shall not be bound to Council not to regard trusts.

A.D. 1912. see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

Application
of revenue
of gas
under-
taking.

38. The Council shall apply all money from time to time received by them in respect of their gas undertaking except borrowed money and money properly applicable on capital account as follows:—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking:

Secondly In payment of the interest on moneys borrowed by the Council for the purposes of the undertaking:

Thirdly In providing the requisite instalments or payments in respect of moneys borrowed for the purposes of the undertaking:

Fourthly In extending and improving (if the Council think fit) any works for the purposes of the undertaking:

Fifthly In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to a sum equal to ten per centum of the capital expended on the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from the undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing any part of the works forming part thereof and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum:

And the Council shall carry to the district fund so much of any balance remaining in any year of the said money received (together with the interest on the reserve fund when such fund

amounts to the prescribed maximum) as may in the opinion of the Council not be required for carrying on the undertaking and paying the current expenses connected therewith. A.D. 1912.

39. If in any year the amount of the revenue of the gas undertaking or the electricity undertaking of the Council actual or estimated shall be insufficient for the payment of the charges thereon the deficiency shall be made good by an increase of the general district rate made within one year after such deficiency has been ascertained or estimated and the Council in preparing the estimates of the amount required in their judgment to be raised by means of a general district rate for the purposes of the district shall include therein such sum (if any) as in their judgment is necessary to be provided in aid of any deficiency from time to time arising or expected to arise as aforesaid in the revenue of such undertaking. Provision in case of deficiency of revenue of gas or electricity undertakings.

40.—(1) The Council shall keep the accounts in respect of their gas undertaking and their electricity undertaking separate from each other and also from all their other accounts distinguishing therein capital from revenue. Separate accounts to be kept and audited.

(2) Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts.

41. All capital expenditure incurred by the Council in relation to the purchase of the undertaking of the Company or for any other purposes of this Act which concern both the gas undertaking and the electricity undertaking of the Council shall be apportioned in the accounts of the Council between those two undertakings in such proportion as the Council may determine. Apportionment of certain capital expenditure between accounts of gas undertaking and electricity undertaking.

42. Any expenses incurred by the Council in carrying into execution the provisions of this Act with respect to which no other provision is made may be paid out of the district fund and general district rate. Expenses of execution of Act.

PART V.

MISCELLANEOUS.

43. Where in any legal proceedings taken by or on behalf of the Council whether under this Act or under any general Evidence of appointments authority &c.

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A.D. 1912. or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution of the Council or of any committee of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman of the Council or the clerk shall be *prima facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

Authentica-
tion and ser-
vice of
notices &c.

44.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Persons act-
ing in execu-
tion of Act
not to be per-
sonally
liable.

45. No matter or thing done or contract entered into by the Council nor any matter or thing done by the clerk or by any member or officer of the Council or any person whomsoever acting under the direction of the Council shall if the matter or thing be done or the contract be entered into *bonâ fide* for the purpose of executing this Act subject them or any of them personally to any action liability claim or demand whatsoever and any expense incurred by the Council or clerk member officer or person acting as last aforesaid shall be borne and repaid out of any of the funds at the disposal of the Council.

Inquiries
by Local
Govern-
ment Board.

46.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the

purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875. A.D. 1912.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

47. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid by an officer of the Council authorised in that behalf or by the clerk. Informations
by whom to
be laid.

48. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges not
disqualified.

49. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown
rights.

50. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto and also the costs charges and expenses incurred by the Council in relation to their opposition to the Bill promoted by the Company in the session 1911 as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the district fund and general district rate or out of moneys borrowed under the powers of this Act. Costs of Act.

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A.D. 1912. The SCHEDULE referred to in the foregoing Act.

FORM OF MORTGAGE.

THE URBAN DISTRICT OF SIDMOUTH.

By virtue of the Sidmouth Urban District Council Act 1912 and of any other powers in that behalf them enabling the Sidmouth Urban District Council (herein-after called "the Council") in consideration of the sum of pounds paid to the treasurer of the Council by (herein-after called "the mortgagee") do hereby grant and assign unto the mortgagee (his) executors administrators and assigns such proportion of the revenues of the Council in the said Act defined as the said sum of £ so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee (his) executors administrators and assigns from the day of the date of these presents until the said sum of shall be fully paid and satisfied with interest for the same at the rate of per centum per annum from the day of one thousand nine hundred and until payment of the said principal sum such interest to be paid half yearly on the thirtieth day of June and the thirty-first day of December in each year And it is hereby agreed that the said principal sum of pounds shall be repaid at the office of the Council in the urban district of Sidmouth on the day of one thousand nine hundred and :

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be mentioned and specified in an endorsement to be made hereon under the hands of the chairman and clerk of the Council for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Council have caused their common seal to be hereunto affixed this day of one thousand nine hundred and .

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Act, 1912.

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named _____ consenting the within-mentioned _____ A.D. 1912.
time for the repayment of the within-mentioned principal sum of _____
is hereby extended to the _____ day of _____ one
thousand nine hundred and _____ (and the interest to be paid thereon
on and from the _____ day of _____ one thousand nine
hundred and _____ is hereby declared to be at the rate of _____ per
centum per annum).

Dated this _____ day of _____ one thousand nine
hundred and _____

FORM OF TRANSFER OF MORTGAGE.

I (the within-named) _____ of _____ in consideration of
the sum of _____ pounds paid to me by _____ of _____
(herein-after called "the transferee") do hereby transfer to the trans-
feree (his) executors administrators and assigns (the within-written
security) (the mortgage number _____ of the revenues of the Sidmouth
Urban District Council bearing date the _____ day of _____)
and all my right and interest under the same subject to the several
conditions on which I hold the same at the time of the execution hereof
and I the transferee for myself my executors administrators and assigns
do hereby agree to take the said mortgage security subject to the
same conditions.

Dated this _____ day of _____ one thousand nine
hundred and _____

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[17-20]

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